



Bill Number: S.B. 1567

Hoffman Floor Amendment

Reference to: GOVERNMENT Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that the prohibition on a public entity and its contractors exposing minors to sexually explicit materials and acts does not apply to sexually explicit materials that may be displayed, presented or discussed in connection with a court proceeding when a minor has a legal right or obligation to be present at the proceeding.

HOFFMAN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1567
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute

or previously enacted session law.

[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.

~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.

~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.

<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.

~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.

{{ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS}} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.

{{Orange lowercase underlining in double curly brackets}} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.

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1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 38, chapter 3, article 4, Arizona Revised
3 Statutes, is amended by adding section 38-452, to read:

4 38-452. Sexually explicit materials; prohibition; violation;
5 classification; acknowledgment form; applicability;
6 definitions

7 A. THIS STATE OR A STATE AGENCY, CITY, TOWN, COUNTY OR POLITICAL
8 SUBDIVISION OF THIS STATE MAY NOT EXPOSE MINORS TO SEXUALLY EXPLICIT
9 MATERIALS AND SHALL PROHIBIT ITS CONTRACTORS FROM EXPOSING MINORS TO
10 SEXUALLY EXPLICIT MATERIALS.

11 B. A FACILITY OR PROPERTY OWNED, LEASED OR MANAGED BY A PERSON OR
12 ENTITY PRESCRIBED BY SUBSECTION A OF THIS SECTION MAY NOT BE USED FOR
13 FILMING OR FACILITATING SEXUALLY EXPLICIT ACTS.

14 C. A PERSON THAT ACTS WITH CRIMINAL NEGLIGENCE IN VIOLATION OF THIS
15 SECTION IS GUILTY OF A CLASS 5 FELONY.

16 [D. THIS STATE OR A STATE AGENCY, CITY, TOWN, COUNTY OR POLITICAL
17 SUBDIVISION OF THIS STATE SHALL REQUIRE ANY INDIVIDUAL WHO IS HIRED AS AN

1 EMPLOYEE OR INDEPENDENT CONTRACTOR OF THIS STATE OR THE STATE AGENCY,
2 CITY, TOWN, COUNTY OR POLITICAL SUBDIVISION OF THIS STATE ON OR AFTER THE
3 EFFECTIVE DATE OF THIS SECTION TO SIGN A FORM ACKNOWLEDGING THAT THE
4 INDIVIDUAL HAS READ THIS SECTION ON THE DATE THAT THE INDIVIDUAL IS
5 HIRED.]

6 {{E. THIS SECTION DOES NOT APPLY TO SEXUALLY EXPLICIT MATERIALS
7 THAT MAY BE DISPLAYED, PRESENTED OR DISCUSSED IN CONNECTION WITH A COURT
8 PROCEEDING WHEN A MINOR HAS A LEGAL RIGHT OR OBLIGATION TO BE PRESENT AT
9 THE PROCEEDING.}}

10 [D.] {{E.}}{E.} FOR THE PURPOSES OF THIS SECTION:

11 1. "SEXUAL CONDUCT" MEANS ACTS OF MASTURBATION, SEXUAL INTERCOURSE
12 OR PHYSICAL CONTACT WITH A PERSON'S CLOTHED OR UNCLOTHED GENITALS, PUBIC
13 AREA OR BUTTOCKS OR THE FEMALE BREAST.

14 2. "SEXUAL EXCITEMENT" MEANS THE CONDITION OF HUMAN MALE OR FEMALE
15 GENITALS WHEN IN A STATE OF SEXUAL STIMULATION OR AROUSAL.

16 3. "SEXUALLY EXPLICIT MATERIALS" INCLUDES TEXTUAL, VISUAL OR AUDIO
17 MATERIALS OR MATERIALS ACCESSED VIA ANY OTHER MEDIUM THAT DEPICT ANY OF
18 THE FOLLOWING:

19 (a) SEXUAL CONDUCT.

20 (b) SEXUAL EXCITEMENT.

21 (c) ULTIMATE SEXUAL ACTS.

22 4. "ULTIMATE SEXUAL ACTS" MEANS SEXUAL INTERCOURSE, VAGINAL OR
23 ANAL, FELLATIO, CUNNILINGUS, BESTIALITY OR SODOMY.

24 <<Sec. 2. Implementation

25 [This state or a state agency, city, town, county or political
26 subdivision of this state shall require each individual who is employed as
27 an employee or independent contractor of this state or the state agency,
28 city, town, county or political subdivision of this state on the effective
29 date of this act to sign a form acknowledging that the individual has read
30 section 38-452, Arizona Revised Statutes, as added by this act.]>>

31 Enroll and engross to conform

32 Amend title to conform

JAKE HOFFMAN

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